

Arun Kumar vs Meenu Kumar on 1 June, 2012

Author: G.S.Sistani

Bench: G.S.Sistani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CM(M) 1241/2009
% Judgment dated 1st June, 2012
ARUN KUMAR Petitioner
Through: Mr.A.S. Chadha, Advocate
versus
MEENU KUMAR Respondent
Through: Mr.Alok Aggarwal, Advocate
CORAM:
HON'BLE MR. JUSTICE G.S.SISTANI

G.S.SISTANI, J.

1. Present petition has been filed by the petitioner under Article 227 of the Constitution of India, assailing the order dated 25.07.2009, whereby the District Judge has granted monthly maintenance to the respondent no.1, wife @ Rs.5,500/- per month and litigation expenses to the tune of Rs.11,000/-. As per the petition at the time of marriage the petitioner was a widower and respondent no.1 was a divorcee.

2. Mr.Chadha, counsel for the petitioner submits the marriage between the parties was solemnized in a simple manner and no articles of dowry were given or taken. After marriage parties resided at Faridabad in a house which belongs to M/s.Bhagwan Dass Time Industries Pvt. Ltd. and the house was given to the petitioner by the company, being the director of the company. At the instance of respondent no.1, parties shifted to Sainik Farms in the year 2000. Parties did not have the cordial relations since June, 2002. Respondent no.1 wanted the house at Sainik Farms to be transferred in her name and since the petitioner did not exceed to her request, she threatened him that she would create such a situation that petitioner would be forced to transfer the house in her name. The relationship between the parties deteriorated to the extent that respondent no.1 filed a suit for permanent injunction in the court of Civil Judge, with the prayer that she should not be dispossessed from the house at Sainik Farms. The respondent no.1 on 20.11.2002 in the absence of the petitioner removed all the articles of the household such as furniture, refrigerator, T.V., Paintings, Linen and all her wearing apparels and jewellery etc. and she also took away the Tata Indica Car, belonged to the company. Petitioner informed the police control room, who visited the site and verified the factum of removal of goods from the maid servant, who was working with the petitioner. Since the local police did not cooperate in the investigation of the complaint filed by the petitioner, the petitioner filed a criminal complaint under Sections 380/403/411/34 IPC. After preliminary evidence, the matter was referred to the SHO Mehrauli for investigation. Investigations revealed that household goods were in fact removed from the Sainik Farms house with the help of respondent no.2 by respondent no.1. The goods were recovered from a flat at Gurgaon, which was in

control of respondent no.2; and the car was also recovered from a friend of respondent no.1. It is further submitted that with a view to gain access to the house of the petitioner, respondent no.1 jumped the 9 ft. boundary wall on 21.11.2002 and in the process she received injuries. The respondent no.1 also filed a complaint under Sections 498-A/406/325 IPC resulting in registration of an FIR whereby the aged father and son of the petitioner were also roped in.

3. Mr.Chadha, counsel for the petitioner submits that in a criminal complaint under Sections 380/403/411/34 IPC filed by the petitioner, the respondent no.2 moved an application for becoming approver and he admitted having physical relation with respondent no.1 and having lived together at Shimla and Ludhiana. The petitioner thereafter filed a petition for grant of divorce on the ground of adultery and cruelty. It is submitted that the aforesaid facts disentitled respondent no.1 for grant of maintenance.

4. The main thrust of argument of counsel for the petitioner is that respondent No.1 did not approach the trial court with clean hands and has suppressed and withheld the material facts. It is contended that on this ground alone the application for maintenance is liable to be dismissed. It is submitted that the learned trial court has failed to appreciate that the respondent no.1 was already employed and has sufficient earnings to maintain herself; and respondent no.1 has failed to disclose her income from AVIVA Insurance Company and thus the trial court has exceeded its jurisdiction in granting interim maintenance.

5. Counsel for the petitioner next contends that the learned trial court has failed to take into consideration that respondent no.1 had initiated proceedings under Section 125 Cr.P.C., which were dismissed in default. It is also submitted that the purpose of allowing the petition to be dismissed, was that respondent no.1 was fully aware that her claim for maintenance was likely to be declined because of her living in adultery with respondent no.2. Respondent no.1 in order to avoid the legal consequences, has not pressed the application under Section 125 Cr.P.C. and has filed the application under Section 24 of the Hindu Marriage Act for claiming the same relief. It is also the case of the petitioner that the conduct of the respondent no.1 was such that she has disentitled herself for grant of maintenance.

6. Elaborating his arguments further with regard to concealment of material facts, it is contended by counsel for the petitioner that respondent no.1 did not disclose before the trial court that she was employed and had sufficient income to sustain herself. In her affidavit, which was filed on 03.04.2008 pursuant to the order passed by this Court, she did not disclose her income from AVIVA Insurance and details regarding the period she worked there. She also did not disclose that she purchased a brand new Santro Car and had made the down payment of Rs.78,000/- and the balance was financed by the ICICI bank for which she was paying monthly instalments of Rs.6,635/- to the bank. The amount so paid were out of her own funds and resources, which would disentitle her for maintenance on account of suppression of material facts. The respondent has also not disclosed that she travelled abroad at the instance of AVIVA Insurance company which would show that she was earning sufficient amounts from the employment. Besides that she was running a boutique and having business with respondent no.2.

7. It is contended by counsel for the petitioner that respondent no.1 has enough earning to sustain herself. It is also submitted that the trial court has failed to appreciate that respondent no.1 owns a flat at Punjabi Bagh in her name and during the pendency of the petition she shifted to a house at Sukhdev Vihar which was purchased by her and prior to that she was living in a rented house at A-56 Sukhdev Vihar, New Delhj; and she has also withdrawn heavy amount from her PPF account.

8. It is also submitted by counsel for the petitioner that the stand taken by the respondent that the car purchased out of the funds of the parents is factually incorrect, as the car was purchased in September, 2005 whereas father of respondent no.1 had died on 16.09.2005 and the mother died in January, 2006. Counsel for the petitioner also submits that the statement of account filed by the respondent shows that she was making payments of her EMIs regularly.

9. Learned counsel for the petitioner has relied on S.P. Chengalvaraya Naidu v. Jagan Nath, reported at 1994 SC 853; Smt.Mamta Jaiswal v. Sh.Rajesh Jaiswal, reported at 2001 (2) All India Hindu Law Reporter 228; and Dudhiben Merakhbhai v. Nathabhai Hazbhai & Anr., reported at 1998(1) All India Hindu Law Reporter 111, in support of his submission that one must come to Court with clean hands and any case which is based on falsehood is liable to be summarily thrown out.

10. Present petition is opposed by counsel for the respondent, wife on the ground that the petition is gross abuse of the process of law. It is submitted that the grounds raised in the present petition are imaginary and with a view to deprive the respondent no.1 of her legitimate right to maintenance and the petitioner is attempting to ensure that respondent no.1 is left with no money even to defend her cases. The respondent no.1 has denied that she is living in adultery with respondent no.2. The affidavit filed by defendant no.2 cannot be relied upon, which was filed by him in fear of being implicated in false criminal litigation and in connivance of the petitioner. It is submitted that respondent no.1 was not interested to break the matrimonial home as it was her second marriage and she had already suffered due to an earlier broken marriage, but the rigid behavior and the cruelty inflicted by the petitioner, forced the respondent no.1 to leave the matrimonial home. The petitioner on account of his influence and money power has instituted fabricated cases against her. It is submitted that admittedly the petitioner is a businessman and is a director of a company. It is also submitted that admittedly the parties resided in a Bunglow at Faridabad and then in a palatial house at Sanik Farms, hence the respondent no.1 is entitled to a similar life-style as was being enjoyed by her at the matrimonial home.

11. Mr.Aggarwal further contends that having regard to the standard of living enjoyed by respondent no.1, learned trial court has awarded a meagre sum of Rs.5,500/- to the respondent no.1 and thus the present petition is liable to be dismissed with heavy costs. Counsel for respondent no.1 has also denied that marriage was simple and usual ceremonies were not performed. It is contended that although the marriage was solemnized in a Gurudwara, but the parents of the respondent gave various items including household articles, jewellery, heavy sarees, silver articles and various other gifts to the petitioner and respondent no.1

12. It is submitted that respondent no.1 sustained injuries on account of physical torture by the petitioner and not because of jumping 9 ft. wall of the residence. On account of threat of

dispossession, the respondent no.1 was forced to file a civil suit which she could not pursue, as she was financially weak and was dependent on friends and relations for her survival. It is submitted that on account of lack of financial support she had to frequently change her lawyers as she was unable to pay their fees. Respondent no.1 has refuted the allegations that she was a permanent employee of M/s.AVIVA Insurance company. It is submitted that in order to support herself she received commission from the company on performance basis and it was not a regular monthly income; and that the purchase of Santro Car has been highly magnified. It is submitted that the down payment for the car was paid from the money received from her parents and some monthly instalments were paid by her but she was not even able to make the balance monthly instalments due to paucity of funds. It is contended that her foreign trips have also been highlighted, whereas the foreign trips made by her, were financed by AVIVA Insurance Company. It is submitted that petitioner has concealed his true income, he has various properties, details of which is given below:

"(i). H.No.823, Sec-21-A, Faridabad ad measuring around one thousand square yards.

(ii) H.No.294, Sector-21-B, Faridabad, Haryana measuring around 1000 square yards.

(iii) A Shop in Yusuf Sarai, New Delhi.

(iv) Two rooms flat in Ganga Apartment, Haridwar.

(v) E-236, Nev Valley, Sainik Farms, New Delhi.

(vi) Office at 611-A, Devika Towers, New Delhi.

(vii) Property No.47-B, New Friends Colony.

(viii) Shop No.294-A, Chandani Chowk, Fatehpuri, Delhi.

(ix) House NO.341, ector-21-A, Faridabad, Haryana."

13. It is contended that petitioner is a man of means and he earns lacs of rupees by money lending business and receives rent besides income from investments in shares. Respondent no.1 on the other hand has no regular source of income and she is entitled to enjoy the same status as that of the petitioner.

14. Counsel for the respondent no.1 submits that Sukhdev Vihar flat was purchased after selling the property of her father at Punjabi Bagh, Delhi.

15. Learned counsel for the respondent submits that the respondent has filed an affidavit on 3.4.2008 wherein she has given details with regard to purchase of SANTRO car. Counsel further submits that the respondent has not concealed any material fact from this Hon'ble Court as in the

affidavit she has clearly stated that Rs.78,000/- was paid by her as down payment for the car, the car was financed by ICICI Bank and monthly installments were fixed at Rs.6,635/-, per month, for five years. Along with the affidavit, the respondent has also annexed a photocopy of her bank pass book and a certificate which was issued by AVIVA insurance Company to show her status with the company. Counsel next submits that according to the certificate issued by AVIVA Insurance Company, the respondent was not on the payroll of the AVIVA Insurance Company, she was not entitled to any fixed remuneration and she received the commission from the company in respect of insurances secured by her efforts based on her performance.

16. It is submitted by learned counsel for the respondent that the petitioner has highlighted alleged concealment of the respondent only with a view to hide his own income. It is further submitted that in fact the respondent is entitled to a much higher maintenance from the petitioner, who has concealed his true income. It is next submitted that admittedly, the petitioner is a Managing Director of a company but the income tax return filed by him in this Court does not reveal the correct and true picture where it is shown that his net income is Rs.1,89,400/-. It is also submitted that the petitioner had made a statement before the Court that he is a founder member of a club in Friends Colony, New Delhi; he is residing at Friends Colony with his parents, which house belongs to his father; and he has also admitted that he owns a plot of land measuring 952 sq. ft. in Green Fields at Faridabad.

17. Mr.Aggarwal further contends that the trial court has wrongly assessed the income of the petitioner at Rs.15,000/-, per month, in the year 2005 and Rs.21,000/- in the year 2006. It is further contended that the power of High Court under Article 226/227 is to be exercised not as a Court of appeal and the Court should be slow in interfering with the order of the trial court unless there is grave miscarriage of justice.

18. I have heard learned counsel for the parties and given my thoughtful consideration to the matter. The first submission of Mr.Chadha, learned counsel for the petitioner, is that on account of concealment of facts the application under Section 24 of Hindu Marriage Act filed by the respondent was liable to be dismissed by the trial court. According to learned counsel for the petitioner the respondent had concealed the fact that she was working with AVIVA Insurance Company, she had sufficient income, she was able to purchase a SANTRO car by making a down payment of Rs.78,000/-, she was paying installment of Rs.6,635/-, she had made foreign trips abroad, and the explanation which was rendered for purchase of a flat at Sukhdev Vihar for Rs.30.00 lakhs after selling her father's property at Punjabi Bagh was not a proper explanation as the property at Punjabi Bagh was sold at a much lesser price. The second argument of learned counsel for the petitioner is that since the respondent was living in adultery she was not entitled to any relief. Another argument raised by Mr.Chadha is that the conduct of the respondent is such that she is not entitled to maintenance as she had removed all her belongings and petitioners belongings including furniture, etc., from the house at Sanik Farms and after a Police report was made the articles were recovered from the flat at Gurgaon. The car removed by her was also recovered by the Police.

19. Mr.Agarwal, learned counsel for the respondent, has refuted all the allegations made against the respondent. It is further submitted that the respondent was unceremoniously thrown out of her

matrimonial home, she is entitled to enjoy the same status as she was enjoying in her matrimonial home where she was residing in a palacious bungalow first at Faridabad and thereafter at Sainik Farms, there were servants in the house, her husband is a Managing Director of a company and her husband was a member of a prestigious club. Mr. Agarwal further submits that the respondent has prima facie given the source of purchase of car and rendered explanation with regard to purchase of a flat in Sukhdev Vihar, which was purchased after selling the property of her father. The respondent has also given cogent explanation with regard to the purchase of flat by filing an affidavit in the Court whereas the petitioner has concealed his true income. Counsel also submits that the income tax return filed by the petitioner is unreliable and having regard to the status of respondent no.1 the trial has done complete injustice in the matter and awarded a paltry sum of Rs.5500/- to the respondent no.1. It is further submitted that if at all there is miscarriage of justice, it is against the respondent and not the petitioner.

20. During the course of hearing, learned counsel for the petitioner has expressed pain and anguish in the manner the respondent had treated the petitioner. Complaints were made against the petitioner and his aged father whereas according to the petitioner respondent was responsible for breakdown of the marriage. Similar allegations were made by the respondent against the petitioner.

21. Before dealing with the rival contentions of the parties, it would be useful to reproduce the observations made by a Single Judge of this Court in the case of Jasbir Kaur Sehgal (Smt.) v. District Judge, Dehradun & Others, reported at (1997) 7 Supreme Court Cases 7. Para 12 of the judgment reads as under:

"12. It is settled position of law that a wife is entitled to live in a similar status as was enjoyed by her in her matrimonial home. It is the duty of the courts to ensure that it should not be a case that one spouse lives in a life of comfort and luxury while the other spouse lives a life of deprivation, poverty. During the pendency of divorce proceedings the parties should be able to maintain themselves and should be sufficiently entitled to be represented in judicial proceedings. If in case the party is unable to do so on account of insufficient income, the other spouse shall be liable to pay the same."

22. In the case of Bharat Hegde v. Smt. Saroj Hegde, reported at 140 (2007) DLT 16, the Apex Court has held as under:

"19. As noted herein above, unfortunately, nobody pays proper taxes to the Government. Self employed persons seldom disclose their true income. Prudence and worldly wisdom gained by a judge before whom citizens of all stratas of society litigate it can always be used by a judge to broadly ascertain as to what is going on in the society. By no means, said knowledge can be used where law requires a fact to be conclusively proved. But where the law requires a Judge to form an opinion based on a host of primary data, a Judge can formulate an opinion pertaining to the likely income from the capital assets of the husband."

23. While there is no quarrel to the proposition that one must approach the Court with clean hands and must not suppress and withhold material facts as far as judgment relied upon in the case of *Dudhiben Merakhbhai* (supra) is concerned, the same is not applicable to the facts of the present case as it pertains to proceedings under Section 125 of Cr.P.C. and even otherwise in this case it is yet to be proved that respondent was living in adultery. The case of *Smt. Mamta Jaiswal* (supra) is also not applicable to the facts of the present case as it cannot be said that the respondent is sitting idle with a view to extract money from the petitioner but the moot question is as to whether the respondent has regular source of income and whether the income is such which permits her to stay and live in dignity and with the same status which she was enjoying in her matrimonial home.

24. While in the application under Section 24 of Hindu Marriage Act the respondent did not disclose that she was working on commission basis with AVIVA Insurance Company. Concealment by the parties in filing an application under Section 24 of Hindu Marriage Act and the reply thereto is highly prevalent and such a practice should be strongly deprecated. In this case by an order dated 24.9.2007 passed by Additional District Judge both parties were directed to file affidavits with regard to their income and in the affidavit filed by the respondent on 3.4.2008, the respondent clarified and placed on record a certificate from AVIVA Insurance Company to show that she was serving not as a regular employee with AVIVA Insurance Company and she was on the payroll, nor she was entitled to fix remuneration and she received commission from the company in respect of insurance secured by her efforts. She also clarified in her affidavit the source for purchasing the SANTRO car and even annexed her bank statement as also saving bank account pass book. She has also rendered an explanation with regard to the purchase of a flat and the source of income after selling the property, which belonged to her father. An Indian woman has been given an equal status under Articles 14 and 16 of the Constitution of India. She has a right to live in dignity and according to the status of her husband. The certificate issued by AVIVA Insurance Company would show that the respondent was not on their payroll and, thus, it cannot be said that she had a regular source of income and further it cannot be said that by any income generated on commission she would be able to enjoy the same status which she was enjoying in her matrimonial home.

25. Counsel for the petitioner has pointed out various loopholes in the explanation rendered with regard to purchase of flat and Santro car. However, I am of the view that at this stage the Court cannot minutely examine the matter as recording of evidence would be necessary. At this stage the explanation seems to be satisfactory. I find force in the submission made by counsel for the respondent that even the petitioner has not disclosed his assets and true income. Courts have taken judicious notice of the fact that few people pay proper taxes to the Government and self-employed persons seldom disclose their true income. It has also been held that while assessing the income of a spouse some guess work is to be done by the Court.

26. This Court in the case of *Jayant Bhagava v. Priya Bhargava*, reported at 181 (2011) DLT 602 this Court had culled out various factors to be taken into consideration to assess the income of a spouse. It would be useful to reproduce paras 12, 16 and 17 of the judgment:

"It is settled position of law that a wife is entitled to live in a similar status as was enjoyed by her in her matrimonial home. It is the duty of the courts to ensure that it

should not be a case that one spouse lives in a life of comfort and luxury while the other spouse lives a life of deprivation, poverty. During the pendency of divorce proceedings the parties should be able to maintain themselves and should be sufficiently entitled to be represented in judicial proceedings. If in case the party is unable to do so on account of insufficient income, the other spouse shall be liable to pay the same. (See *Jasbir Kaur Sehgal (Smt.) v. District Judge, Dehradun & Others*, reported at (1997) 7 Supreme Court Cases 7).

16. Although there cannot be an exhaustive list of factors, which are to be considered in guessing the income of the spouses, but the order based on guess work cannot be arbitrary, whimsical or fanciful. While guessing the income of the spouse, when the sources of income are either not disclosed or not correctly disclosed, the Court can take into consideration amongst others the following factors:

- (i) Life style of the spouse;
- (ii) The amount spent at the time of marriage and the manner in which marriage was performed;
- (iii) Destination of honeymoon;
- (iv) Ownership of motor vehicles;
- (v) Household facilities;
- (vi) Facility of driver, cook and other help;
- (vii) Credit cards;
- (viii) Bank account details;
- (ix) Club Membership;
- (x) Amount of Insurance Premium paid;
- (xi) Property or properties purchased;
- (xii) Rental income;
- (xiii) Amount of rent paid;
- (xiv) Amount spent on travel/ holiday;
- (xv) Locality of residence;
- (xvi) Number of mobile phones;
- (xvii) Qualification of spouse;

(xviii) School(s) where the child or children are studying when parties were residing together;

(xix) Amount spent on fees and other expenses incurred; (xx) Amount spend on extra-curricular activities of children when parties were residing together;

(xxi) Capacity to repay loan.

17. These are some of the factors, which may be considered by any court in guesstimating or having a rough idea or to guess the income of a spouse. It has repeatedly been held by the Courts that one cannot ignore the fact that an Indian woman has been given an equal status under Articles 14 and 16 of the Constitution of India and she has a right to live in dignity and according to the status of her husband. In this case, the stand taken by the respondent with respect to his earning is

unbelievable."

27. Having regard to the fact that the petitioner is a businessman; a Director of a company, who was first residing at Faridabad and then in a bungalow at Sainik Farm; he has a plot measuring 952 sq. ft. at Faridabad; he is a member of prestigious club in Friends Colony; is at present also residing at Friends Colony surely his wife is entitled to live in a same kind of status as he is enjoying.

28. In the case of *Classic Equipment (P) Ltd. v. Johnson Enterprises & Ors.*, reported at 2010 (2) R.A.J. 406 (Del.) this Court had an occasion to revisit the law with respect to the scope of Article 227 of the Constitution of India. It was held that:

"19. It is no longer *res integra* that the powers of the High Court under Articles 226 and 227 of the Constitution of India, are very wide, however, the same are to be exercised not as a Court of Appeal, and the High Court should be slow to interfere unless there is grave miscarriage of justice.

20. In the case of *Shamshad Ahmad Vs. Tilak Raj Bajaj* (2008) 9 SCC 1, the Apex Court has re-visited the law with regard to the power of the High Court under Articles 226 and 227 of the Constitution of India and while taking into consideration various judgments has held that no doubt the power of the High Court under Articles 226 and 227 are very wide and extensive over all Courts and Tribunals, the same are to be exercised not as a Court of Appeal and can neither review or re-appraise the evidence, but ordinarily should interfere where there is grave miscarriage of justice or flagrant violation of law:

"38. Though powers of a High Court under Articles 226 and 227 are very wide and extensive over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction, such powers must be exercised within the limits of law. The power is supervisory in nature. The High Court does not act as a court of appeal or a court of error. It can neither review nor reappreciate, nor reweigh the evidence upon which determination of a subordinate court or inferior tribunal purports to be based or to correct errors of fact or even of law and to substitute its own decision for that of the inferior court or tribunal. The powers are required to be exercised most sparingly and only in appropriate cases in order to keep the subordinate courts and inferior tribunals within the limits of law.

39. In *Chandavarkar Sita Ratna Rao v. Ashalata S. Guram*¹ this Court stated: (SCC p. 458, para 16) "16. ... unless there was any grave miscarriage of justice or flagrant violation of law calling for intervention it was not for the High Court under Articles 226 and 227 of the Constitution to interfere. If there is evidence on record on which a finding can be arrived at and if the court has not misdirected itself either on law or on fact, then in exercise of the power under Article 226 or Article 227 of the Constitution, the High Court should refrain from interfering with such findings made by the appropriate authorities."

40. Even prior to Chandavarkar¹ in Bathutmal Raichand Oswal v. Laxmibai R. Tarta² dealing with the supervisory power of a High Court under Article 227 of the Constitution, Bhagwati, J. (as His Lordship then was) stated: (Bathutmal Raichand Oswal case², SCC pp. 864-65, para 7) "7. ... If an error of fact, even though apparent on the face of the record, cannot be corrected by means of a writ of certiorari it should follow a fortiori that it is not subject to correction by the High Court in the exercise of its jurisdiction under Article 227. The power of superintendence under Article 227 cannot be invoked to correct an error of fact which only a superior court can do in exercise of its statutory power as a court of appeal. The High Court cannot in guise of exercising its jurisdiction under Article 227 convert itself into a court of appeal when the legislature has not conferred a right of appeal and made the decision of the subordinate court or tribunal final on facts."

(emphasis supplied)

41. In State of Maharashtra v. Milind³ this Court observed:

(SCC p. 29, para 33) (1986) 4 SCC 447.

(1975) 1 SCC 858.

(2001) 1 SCC 4 : 2001 SCC (L&S) 117.

"33. ... The power of the High Court under Article 227 of the Constitution of India, while exercising the power of judicial review against an order of inferior tribunal being supervisory and not appellate, the High Court would be justified in interfering with the conclusion of the tribunal only when it records a finding that the inferior tribunal's conclusion is based upon exclusion of some admissible evidence or consideration of some inadmissible evidence or the inferior tribunal has no jurisdiction at all or that the finding is such, which no reasonable man could arrive at, on the materials on record."

42. In State v. Navjot Sandhu⁴ this Court reiterated: (SCC pp. 656-57, para 28) "28. Thus the law is that Article 227 of the Constitution of India gives the High Court the power of superintendence over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction. This jurisdiction cannot be limited or fettered by any Act of the State Legislature. The supervisory jurisdiction extends to keeping the subordinate tribunals within the limits of their authority and to seeing that they obey the law. The powers under Article 227 are wide and can be used to meet the ends of justice. They can be used to interfere even with an interlocutory order. However, the power under Article 227 is a discretionary power and it is difficult to attribute to an order of the High Court, such a source of power, when the High Court itself does not in terms purport to exercise any such discretionary power. It is settled law that this power of judicial superintendence, under Article 227, must be exercised sparingly and only to keep subordinate courts and tribunals within the bounds of their authority and not to correct mere errors. Further, where the statute bans the exercise of revisional powers it would require very exceptional circumstances to warrant interference under Article 227 of the Constitution of India since the power of superintendence was

not meant to circumvent statutory law. It is settled law that the jurisdiction under Article 227 could not be exercised 'as the cloak of an appeal in disguise'."

(emphasis supplied)"

(2003) 6 SCC 641 : 2003 SCC (Cri) 1545.

29. In my view the learned trial court has considered the rival contentions between the parties and after taking into consideration the affidavits filed on record granted a conservative amount as maintenance to the respondent in the sum of Rs.5500/-. A reading of the order of the learned trial court and having examined the rival contentions of counsel for the parties in detail it cannot be said that the order passed by learned trial court has led to grave miscarriage of justice or there is any flagrant violation of law. It is not for this Court to review or re-appreciate the grounds, which led to the passing of the impugned order nor it is for this Court to substitute its own decision for that of the decision of the learned trial court, a power which is to be exercised sparingly and in appropriate cases. Although in the application filed under Section 24 of Hindu Marriage Act the petitioner did not disclose her association with AVIVA Insurance Company but since in a subsequent affidavit all the relevant facts were disclosed, I do not find this is a fit case to dismiss the application filed under Section 24 of Hindu Marriage Act on the grounds of concealment as some distinction has to be made between a commercial transaction and a matrimonial dispute and a lady cannot be deprived of maintenance by her husband, who is legally entitled to maintain her merely on this ground. To dismiss the application on the ground of concealment alone would be extremely harsh, a lady cannot be forced to stay in poverty. The trial court has only granted Rs.5500/- to the respondent, which is a very meager amount in today's day and age. It seems the trial court has given benefit to the petitioner based on the earning of the respondent from the AVIVA Insurance Company. I do not find this a fit case to interfere in the order passed by the trial court. The trial court will decide the matter finally without being affected by any of the observations made by this Court while passing the present order.

30. Petition is accordingly dismissed. No cost.

G.S.SISTANI, J JUNE 01, 2012 ssn